

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X **Index No.** _____
RICARDO CRUZ and ALEXANDER CRUZ,

Purchased 3-10-17

Plaintiffs

Plaintiffs designate Queens
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
SGT. FRANCIS CLOUGH (tax reg. # 915065), and
POLICE OFFICER JOHN DOE**

SUMMONS

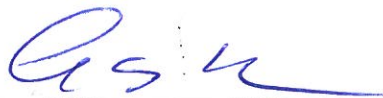
Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
March 10, 2017



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, New York 10022
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 1000

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X Index No. _____
RICARDO CRUZ and ALEXANDER CRUZ,

Verified Complaint

Plaintiff

- against -

**THE CITY OF NEW YORK,
SGT. FRANCIS CLOUGH (tax reg. # 915065), and
POLICE OFFICER JOHN DOE**

Defendants.

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Plaintiffs RICARDO CRUZ and ALEXANDER CRUZ, by their attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff RICARDO CRUZ was a resident of Queens County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff ALEXANDER CRUZ was a resident of Queens County, City and State of New York.
3. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
4. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.

5. At all times hereinafter mentioned, defendant, SGT. FRANCIS CLOUGH (tax reg. # 915065 ("SGT. CLOUGH") was and is an officer employed by Defendants.
6. At all times hereinafter mentioned, defendant, POLICE OFFICER JOHN DOE ("P.O. DOE") was and is an officer employed by Defendants.

BACKGROUND

7. On March 12, 2016, at approximately 5:30 p.m., in the vicinity of 113th Street 37th Avenue in Queens County, plaintiff RICARDO CRUZ and plaintiff ALEXANDER CRUZ were passengers in the same vehicle driven by a third male.
8. Shortly thereafter, when it became obvious that the driver of said vehicle was trying to avoid the POLICE, both Plaintiffs directed the driver to stop the vehicle so that both Plaintiffs could exit the vehicle.
9. After exiting the vehicle, both Plaintiffs placed their hands behind their backs and laid face-first on the ground.
10. Next, without just cause or provocation, defendants, including SGT. CLOUGH and P.O. DOE, kicked RICARDO CRUZ in his face several times, struck him about his body several times and handcuffed him.
11. Defendants also grabbed ALEXANDER CRUZ and handcuffed ALEXANDER CRUZ.
12. Thereafter, Plaintiffs were taken to a police precinct and forced to remain in various holding cells. Plaintiffs were subsequently taken to Queens Central Booking.
13. On or about March 13, 2016, a criminal complaint was issued at the directive of Defendants, and a criminal action against Plaintiffs was commenced.
14. Plaintiffs remained in custody until their release on or about March 13, 2016.

15. Plaintiffs had to defend against false charges until the criminal matters wer terminated in favor of Plaintiffs on February 21, 2017.

PROCEDURAL POSTURE

16. On March 31, 2016, Plaintiff ALEXANDER CRUZ served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
17. On April 19, 2016, Plaintiff RICARDO CRUZ served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
18. More than thirty days have elapsed since service of said notices and defendant CITY has failed to pay or adjust this claim.
19. A 50-H hearing has been held for each Plaintiff.
20. This action has been commenced within one year and ninety days after the causes of action for each Plaintiff accrued.
21. Plaintiffs have duly complied with all conditions precedent to the commencement of this action.

RICARDO CRUZFIRST CAUSE OF ACTION FOR PLAINTIFFRICARDO CRUZ: FALSE IMPRISONMENT

22. Paragraphs 1-21 are incorporated by reference as fully set forth herein.
23. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 7-15, and Plaintiff did not consent to that arrest or confinement.
24. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.
25. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION FOR PLAINTIFFRICARDO CRUZ: MALICIOUS PROSECUTION

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.
27. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.
28. All charges pending against Plaintiff were dismissed and sealed on February 21, 2017.
29. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION FOR PLAINTIFFRICARDO CRUZ: ASSAULT

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. SGT. CLOUGH and P.O. DOE, acting as the agents, servants and employees of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact when they kicked Plaintiff in his face and struck him about his body.
32. As a result of being assaulted by the Defendants, including SGT. CLOUGH and P.O. DOE, Plaintiff sustained multiple injuries including severe pain to his head, face, left eye and shoulder. Plaintiff also sustained emotional distress, humiliation and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION FOR PLAINTIFF

RICARDO CRUZ: BATTERY

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.
34. When defendants, including SGT. CLOUGH and P.O. DOE, kicked and struck Plaintiff, they subjected Plaintiff to a harmful or offensive bodily contact.
35. Defendants, including SGT. CLOUGH and P.O. DOE, intended to make that contact without the consent of Plaintiff.
36. As a result of being battered by the defendants, SGT. CLOUGH and P.O. DOE, Plaintiff sustained multiple physical injuries, including Plaintiff sustained multiple injuries including severe pain to his head, face, left eye and shoulder. Plaintiff also sustained emotional injuries, including humiliation and fear and intimidation for his safety.

ALEXANDER CRUZFIFTH CAUSE OF ACTION FOR PLAINTIFFALEXANDER CRUZ: FALSE IMPRISONMENT

37. Paragraphs 1-36 are incorporated by reference as fully set forth herein.

38. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 7-15, and Plaintiff did not consent to that arrest or confinement.

39. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

40. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SIXTH CAUSE OF ACTION FOR PLAINTIFFALEXANDER CRUZ: MALICIOUS PROSECUTION

41. Paragraphs 1-40 are incorporated by reference as though fully set forth herein.

42. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

43. All charges pending against Plaintiff were dismissed and sealed on February 21, 2017.

44. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any

lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
March 10, 2017

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, NY 10022
212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

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RICARDO CRUZ and ALEXANDER CRUZ,

Plaintiffs

- against -

**THE CITY OF NEW YORK,
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POLICE OFFICER JOHN DOE**

Defendants.

-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for the Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiffs is because the Plaintiffs reside outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
March 10, 2017



ELLIOT S. KAY